



Merchant Service Agreement

Today,

Lyndon Global Ltd, registered number 132703 incorporated in Marshall Islands and having its registered office at Trust Company Complex, Ajeltake Road

hereinafter referred to as "MERCHANT"

and

TransactWorld Limited, registered number HE 303056 incorporated in Cyprus and having its registered office at 3 Thivon Street, Anna Court 8-9, Office 202, CY-1056 Nicosia, Cyprus
hereinafter referred to as "TW" or "TransactWorld"

enter into this agreement ("AGREEMENT") with the date of Signature ("EFFECTIVE DATE").

Within this agreement the terms and conditions are established that apply to the provision of services for MERCHANT by **TransactWorld Limited** according to the following:

DEFINITIONS

ACQUIRING PARTNER	Any partner of TransactWorld Limited who is offering payment acceptance to MERCHANTs. This includes Credit Card Acquirers, Banks or any other organization offering acquiring services.
APPLICABLE LAW	All laws and regulations of the jurisdiction from which/where an entity conducts business.
CHARGEBACK	A refund, initiated by the PAYER or the PAYER's bank. CHARGEBACKS occur especially in connection with credit card payments and direct debits.
REFUND	The return of funds to the PAYER initiated by MERCHANT in the case of the PAYER's return of goods or refusal of services
MERCHANT	An entity offering services or goods for use or purchase by PAYER.
PAYER	Someone using services or purchasing goods offered by MERCHANT.
MERCHANT REGISTRATION FORM	A form to be filled in by MERCHANT containing information about MERCHANT that is necessary for payment transactions.
MATERIAL BREACH	A breach (including an anticipatory breach) that is serious in the widest sense of having a serious effect on the benefit which the terminating party would otherwise derive from: • substantial portion of this agreement; or • any of the obligations set out in this agreement over the term of this agreement. In deciding whether any breach is material no regard shall be had to whether it occurs by some accident, mishap, mistake or misunderstanding.

INTRODUCTION

MERCHANT intends to accept payments electronically for services and/or physical or virtual goods.

TransactWorld Limited performs technical services to support payments. This includes:

- consulting on the selection of suitable local payment methods,
- consulting on technical and administrative topics necessary to perform payments,
- configuring and provisioning of a transaction platform, that offers a variety of services to perform payments and granting MERCHANT access to this platform,
- providing analytical tools and reports to support a high quality in performing payment transactions.

On the basis of this AGREEMENT, **TransactWorld Limited** accepts payments on behalf of the MERCHANT from ACQUIRING PARTNER and does subsequent transfer to the MERCHANT as per APPENDIX A.1 – Rate Chart.

This AGREEMENT contains the terms to be applied on **TransactWorld Limited** performing the described services for the MERCHANT.

DESCRIPTION OF SERVICES

- 3.1 **TransactWorld Limited** supports the MERCHANT in general in performing technical services with the goal of accepting payments. In this respect, **TransactWorld Limited** offers its expertise about the operating environment, relevant payment methods as well as technical and commercial know-how related to performing payment transactions.
- 3.2 **TransactWorld Limited** provides to the MERCHANT access (limited in time to the term of this agreement or its valid extension, non-exclusive and non-transferrable) to a transaction system that performs and controls payment transactions. The system's features include the following:
- An interface that facilitates for the MERCHANT the transmission of transactions and/or fraud prevention operations through the transaction system within the necessary security environment
 - numerous integrations with external providers of payment and risk management systems, as well as
 - an application for the control and analysis of transactions and the configuration of tools for fraud prevention.
- 3.3 The availability of **TransactWorld Limited**'s transaction system is owed according to the following conditions:
- **TransactWorld Limited** is obliged to provide availability of its transaction system of at least 99,5% on average per month.
 - **TransactWorld Limited**'s service is deemed available if the servers via which the agreed services are running, are connected via an access node with the Internet and the services run free of significant defects.
 - The availability with respect to the server connection are monitored by an external monitoring service.
 - In order to sustain the quality and security of **TransactWorld Limited**'s services, the PARTIES agree on scheduled maintenance windows of up to a maximum of 3 (three) hours per month. During these scheduled maintenance windows the services are deemed available despite the interruption. The merchant will be notified at least 5 business days prior the maintenance window.

THE CONTRACT PARTNERS' RIGHTS AND OBLIGATIONS

- 4.1 Duties with respect to the provision of the services.
- 4.1.1 **TransactWorld Limited** is obliged to provide the services described in clause 4.1.4 to the MERCHANT and his customers.
- 4.1.2 The MERCHANT's duty is to cooperate and reasonably contribute to the provision of the services, especially by fulfilling the necessary prerequisites that are in his realm.
- 4.1.3 The MERCHANT is obliged to integrate **TransactWorld Limited**'s payment interfaces into his webpage / into his application and to operate them according to the manuals. For this purpose, **TransactWorld Limited** provides a documented API.

4.1.4 **TransactWorld Limited** grants a non-exclusive, non-transferrable and revocable licence to access and use **TransactWorld Limited**'s transaction platform on the terms and conditions set out in this AGREEMENT.

4.1.5 **TransactWorld Limited** reserves the right to upgrade, modify, develop or alter any part of the services provided by **TransactWorld Limited** when required by its partner banks, **TransactWorld Limited** and/or legislation. All such changes and additions and the time of their effect shall be notified to the MERCHANT by giving 5 (five) business days prior written notice (where it is possible). In case the Merchant does not agree with such changes it has a right to terminate the Agreement immediately or before the end of the notice term.

4.1.6 Should **TransactWorld Limited** for any of the reasons referred to in 4.1.5 upgrade, modify or alter any part of said services or applications, the MERCHANT is obliged to implement necessary alterations and modifications on his side within 3 weeks of the respective notification. The associated expenses are to be borne by the MERCHANT.

4.1.7 **TransactWorld Limited** reserves the right to suspend, at any time and at its sole discretion its services or functionalities thereof to the MERCHANT at any time, if transactions are made which **TransactWorld Limited** at its sole discretion deems to be

- i) in breach of this AGREEMENT or
- ii) there is reasonable belief to suspect that the MERCHANT is acting in breach of applicable laws and regulations with regards to money laundering, terrorism financing, fraud or other illegal activities or that the MERCHANT can cause harm to **TransactWorld Limited** or to a third party.

TransactWorld Limited will make best efforts to inform the MERCHANT of any measure and provide written evidence unless **TransactWorld Limited** is prohibited from doing so by law or under an order from a competent court or authority.

4.1.8 The MERCHANT acknowledges and agrees that **TransactWorld Limited** operates its services solely as a technical service provider for the purposes of performing payment transactions and that **TransactWorld Limited** under no circumstances

- i) acts as buyer, seller, dealer, middleman, retailer, auctioneer, supplier, distributor, manufacturer, broker, agent or merchant of any product or service being ordered, obtained or procured by any funds processed through its services and
- ii) makes no representations and warranties of quality, safety and legality of any of the products or services purchased with funds received through the **TransactWorld Limited** services.

4.1.9 Neither the issuance of an Authorisation prior to a transaction, nor the payment as part of the transaction, shall be regarded as an assurance of that transaction's validity. Any transaction may be subject to a CHARGEBACK at a later stage. The MERCHANT acknowledges that he bears the full risk with regards to CHARGEBACKs and accepts to pay **TransactWorld Limited** invoices for the agreed fees in this respect.

4.1.10 **TransactWorld Limited** is obliged to use industry-standard encryption methods for the transmission of MERCHANT's transactions.

4.2 Duties in respect of the use of services and the submission of related information:

- 4.2.1 The Merchant shall within ten (10) days after signing of this AGREEMENT provide **TransactWorld Limited** with complete and correct information in accordance with the MERCHANT REGISTRATION FORM (will be provided by **TransactWorld Limited** in the most up-to-date version) and shall promptly inform **TransactWorld Limited** upon changes in respect thereof.
- 4.2.2 The MERCHANT shall operate in accordance with any rules and operating instructions provided by **TransactWorld Limited** or partner banks.
- The relevant details necessary to perform the transactions shall be communicated between the MERCHANT and **TransactWorld Limited** using the address and the technical interface given in the MERCHANT REGISTRATION FORM.
- 4.2.3 **TransactWorld Limited** will assign Transaction-IDs to processed transactions which shall be provided to the MERCHANT. These Transaction-IDs shall be referenced by the MERCHANT in every payment receipt and purchase confirmation in communication with the PAYERS.
- 4.2.4 Both PARTIES shall only act within the applicable national and international laws and regulations with respect to the transactions. The MERCHANT shall perform via **TransactWorld Limited**'s systems only valid and authorised transactions that are initiated by PAYERS.
- 4.2.5 **TransactWorld Limited** is entitled to defer any settlement or any other sum due to the Merchant to the extent that **TransactWorld Limited** considers necessary or appropriate to protect their ability to recover the Fees and/or the sums set out in Annexure 1 below or any other liability (actual or anticipated) of the Merchant in connection with this Agreement, including potential violations imposed by Card Schemes, chargebacks, refunds, providing written explanation and evidence of the events occurred where it is not prohibited by law.

FEES

- 5.1 **TransactWorld Limited** provides access to its transaction platform and performs its services for the MERCHANT for compensation according to the fees listed in Appendix A.
- 5.2 **TransactWorld Limited** will accept payments on behalf of the MERCHANT from ACQUIRING PARTNER and will do subsequent transfer to the MERCHANT as per APPENDIX A.1.
- 5.3 The transaction fees apply to each transaction irrespective of the fact whether the provider of the payment system accepts or declines the transaction.
- 5.4 **TransactWorld Limited** shall have the right to adjust its fees in accordance with any changes in fees it is charged by third parties. In this case, **TransactWorld Limited** will inform the MERCHANT with a notice period of four (4) weeks of such changes taking effect. In this case, the merchant has the right to terminate this AGREEMENT without cause with fourteen (14) days notice, excluding additional rights of the MERCHANT.

INTELLECTUAL PROPERTY RIGHTS

- 6.1 The PARTIES retain all rights to their system, software, all their products, applications and services to which the other PARTY is exposed to or is able to access.
- 6.2 The MERCHANT does not obtain any intellectual property rights with respect to **TransactWorld Limited**'s applications and systems beyond the access right as described in 5.1.4.
- 6.3 Each PARTY warrants and represents that it owns or has the right to use and sub-licence any intellectual property which it uses or licenses for use to the other party.

COMPLIANCE WITH LAWS AND OTHER REGULATIONS

- 7.1 Each PARTY is obliged to process personal data in accordance with regulatory requirements and is responsible for employees carrying out services to also comply with the regulations.
- 7.2 The MERCHANT warrants and represents that he does not use **TransactWorld Limited**'s services and systems for illegal purposes and that goods and services offered comply with Applicable Law.
This includes especially the duty to
 - comply with national and international laws with respect to money laundering and financing of terrorism and
 - to ensure that data offered or provided by the MERCHANT is not in conflict with laws with respect of the protection of minors or the protection of personal rights of third parties.

LIABILITY

- 8.1 NEITHER PARTY IS LIABLE UNDER THIS AGREEMENT FOR ANY INDIRECT, CONSEQUENTIAL, EXEMPLARY, OR INCIDENTAL DAMAGES OR LOSS OF PROFITS RESULTING FROM THE SERVICES (OR ANY THIRD-PARTY GOODS OR SERVICES) EVEN IF IT HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.
- 8.2 EACH PARTY'S LIABILITY WILL BE FOR DIRECT DAMAGES ONLY RESULTING FROM EITHER GROSS NEGLIGENCE OR A MATERIAL BREACH OF THIS AGREEMENT. IN NO EVENT WILL TRANSACTWORLD LIMITED BE LIABLE WITH RESPECT TO ANY AND ALL BREACHES AND DEFAULTS UNDER THIS AGREEMENT FOR AN AMOUNT GREATER THAN THE AGGREGATE FEES PAID BY MERCHANT TO TW UNDER THIS AGREEMENT DURING THE SIX (6) MONTH PERIOD PRECEDING A CLAIM GIVING RISE TO LIABILITY.
- 8.3 NEITHER PARTY WILL BE LIABLE FOR ANY DIRECT OR INDIRECT LOSS OF PROFIT, GOODWILL, BUSINESS OR ANTICIPATED SAVINGS OR FOR ANY INDIRECT OR CONSEQUENTIAL LOSS OR DAMAGE. NEITHER PARTY WILL BE LIABLE FOR ANY DIRECT OR INDIRECT DAMAGES SUFFERED BY ANY OTHER PARTY IF THE EVENTS GIVING RISE TO DAMAGES WERE CAUSED BY AN ACT OR INACTION OF THE OTHER PARTY.
- 8.4 Neither Party shall be liable for any losses resulting from third party services outside its reasonable control (including, but not limited to, telephone and browser services), whether such services are used by Merchant to access the TW or used by TW in order to comply with Merchant's instructions.
- 8.5 No liability shall be raised against each Party more than two (2) years after the accrual of the cause of such liability therefore. It is further agreed that the limitations on liability, expressed herein, shall inure to the benefit of and apply to all parents (both direct and indirect), subsidiaries and affiliates of each Party.

8.6 TW shall not be liable for errors, acts or failures to act by others including but not limited to banks, communication carriers, processing networks through which payments may be passed and or originated, nor will TW be responsible for any loss, liability, or delay caused by fire, earthquakes, war, civil disturbances, power surges or failures, act of government, labour disputes, failures of communication networks, conditions that affect the Internet, legal constraints or other events beyond TW's control.

8.7 The aforementioned limitations of liability are also applicable to TransactWorld Limited's vicarious agents.

Either Party shall indemnify and hold the other Party, its Affiliates, employees and agents harmless from and against any damage, loss, expense, claims or liability that Party may incur:

With respect to any negligent act or omission by, or wilful misconduct of, the Party's employees or agents to the extent however that such negligent act can be situated in the normal course of employment or appointment;

The violation of any Applicable Law, statute or regulation by the Parties or their personnel;

In connection with any third party claims, actions, demands and/or losses to the extent that such losses result from any breach of this Agreement by such indemnifying Party.

The Merchant shall indemnify and hold Transactworld Limited harmless from and against any damage, loss or liability that Transactworld Limited may incur as a result of:

Any modification or amendment of the prescribed terms of use communicated by Trans actworld Limited

Any warranty, condition, representation, indemnity or guarantee granted by the Merchant related to TW Services with respect to the limited warranties specified in clause 12;

Any omission or inaccuracy in the Merchant's advertisements or promotional materials related to the TW Services,

Any modification of or addition to the TW Services not provided or approved by Transactworld or;

The Merchant's failure to comply with this Agreement or any part thereof.

Merchant agrees that including any additional website for processing under this Merchant Service Agreement is a subject to written approval by Transactworld Ltd. If during the term of the agreement transactions from non-approved websites will be detected, Transactworld Ltd has a right to immediately terminate the agreement and impose a fine of 25000 EUR on the Merchant.

Transactworld Limited shall indemnify and hold the Merchant harmless from and against any damage, loss or liability that the Merchant may incur as a result of:

Any warranty, condition, representation, indemnity or guarantee granted by Transact World to the Merchant with respect to the limited warranties specified in clause 12;

Transactworld Limited's failure to comply with this Agreement or any part thereof.

The maximum liability of Transactworld Ltd for indemnity purpose will be up to the total amount of fees generated by the Merchant for the preceeding 6 months.

This section will not be construed to limit or exclude any other claims or remedies to which either Party may be entitled hereunder or in law or equity.

- 8.8 If TransactWorld Limited fails to provide settlements or return rolling reserves in accordance with this Agreement, Merchant is entitled to take any steps under the applicable law it deems necessary to recover the funds owing to it and TransactWorld Limited shall fully cooperate with any Merchant requests to assist Merchant in recovering the funds. TransactWorld Limited remains responsible to Merchant only for any funds it actually receives and is not responsible for the settlements delay or any deduction done by the acquiring partners and other third parties. Unless legally or contractually prohibited, TransactWorld Limited must assign the amount owing to Merchant directly from third parties upon request of Merchant.

DURATION AND TERMINATION

- 9.1 This AGREEMENT commences on the date of signature (if signed by the parties on different dates, the later date) and will be in force for twelve (12) months. The term is automatically extended by a period of another twelve (12) months if neither one of the PARTIES terminates this AGREEMENT by giving notice at least one (1) month before the end of the contractual period.
- 9.2 MERCHANT can terminate this contract within 6 weeks after Effective Date with five (5) days notice if TransactWorld Limited is not able to provide a merchant approval by an ACQUIRING PARTNER.
- 9.3 The possibility to terminate for cause shall remain unaffected. Cause exists if in view of all the circumstances of the individual case and weighing the interests of both parties the continuation of the contractual relationship until the end of the agreed term is unreasonable. Each party shall be entitled to terminate for cause in particular if:
- 9.3.1. the other party is or will be unable to pay or is overindebted, if insolvency proceedings have been instituted against it and have not been denied as unfounded or insolvency proceedings have been denied for lack of assets;
- 9.3.2. the other party is in gross violation of contractual obligations and does not remove the violation upon written request within a reasonable period. A warning setting a deadline is not required if the continuation of the contract is unreasonable on account of the severity of the violation, if no success can be expected or the immediate termination appears justified weighing the mutual interests.
- 9.3.3. Other party commits a Material Breach of any other term of this Agreement which breach is irremediable or (if such breach is remediable) fails to remedy that breach within a period of 30 days after being notified in writing to do so;
- 9.3.4. Other party suspends, or threatens to suspend, payment of its debts or is unable to pay its debts as they fall due or admits inability to pay its debts or is deemed unable to pay its debts under the Applicable Laws;
- 9.3.5. Other party commences negotiations with all or any class of its creditors with a view to rescheduling any of its debts, or makes a proposal for or enters into any compromise or arrangement with any of its creditors for the sole purpose of a scheme for a solvent amalgamation of that other party with one or more other companies or the solvent reconstruction of that other party;
- 9.3.6. An application is made to court, or an order is made, for the appointment of a liquidator, or if a notice of intention to appoint a liquidator is given or if a liquidator is appointed, over the other party;

9.3.7. The other party suspends or ceases, or threatens to suspend or cease, carrying on all or a substantial part of its business;

9.3.8. Any warranty given by the other party in clause 12 of this Agreement is found to be untrue or misleading;

Any event occurs, or proceeding is taken, with respect to the other party in any jurisdiction to which it is subject that has an effect equivalent or similar to any of the events mentioned in clause 9.3.1. to 9.3.8. above (both inclusive)

9.4. Either of Parties has the right to terminate this AGREEMENT by giving 30 days prior written notice.

9.5 The Merchant agrees and confirms that it shall remain solely liable during the term of the Agreement and after the termination of the Agreement for all Chargebacks, Refunds, penalties, loss, damages or cost incurred by **TransactWorld Limited**, Acquiring Bank, and/or Customers and for all claims and proceedings arising against **TransactWorld Limited** with respect to the Agreement

9.6 At the time of Termination, **TransactWorld Limited** along with rolling reserve may retain any amount from the settlement payable to the Merchant as may be determined by **TransactWorld Limited** to cover Chargeback risk, Refund risk or any potential loss, damages, penalties, cost that may be incurred by **TransactWorld Limited** for a period of one hundred and eighty (180) Business days in case if rolling reserve is not enough to cover the same. In the event that such retained amount is not sufficient to cover all outstanding amounts of the Merchant post termination, the Merchant shall ensure that it pays **TransactWorld Limited** all pending amounts within ten (10) Business Days of receiving the demand notice and shall at all times keep **TransactWorld Limited** indemnified in this respect.

CONFIDENTIALITY

10.1 The PARTIES each agree to not divulge, disclose, or use for any other purpose than to perform the services described in this AGREEMENT any information they obtain from the other PARTY in the process of the negotiation or execution of this AGREEMENT, especially including all information provided in the MERCHANT REGISTRATION FORM. This does not apply to information or know-how that:

- a) is or becomes, through no act or failure to act on the part of the receiving party, generally known or available or
- b) is known by the receiving party at the time of receiving such information as evidenced by its records or
- c) is hereafter furnished to the receiving party by a third party, as a matter of right and without restriction on disclosure or
- d) is independently developed by the receiving party without any breach of the AGREEMENT.

10.2 The PARTY relying on the applicability of the aforementioned exceptions shall bear proof of the existence of the exception.

FINAL PROVISIONS

11.1 There are no oral or written side agreements to the AGREEMENT. Modifications or amendments of the contract must be in writing to be effective. This also applies to the waiver of the written-form requirement.

11.2 Claims under a contract between **TransactWorld Limited** and the MERCHANT may only be assigned with the prior written consent of the respective other party.

11.3 This contract is subject to the laws of Cyprus. Place of jurisdiction shall be Cyprus.

11.4 Should any provision of this AGREEMENT, or any provision incorporated therein in the future, be or become invalid or unenforceable, the validity of the remaining provisions of this AGREEMENT shall remain unaffected. The same applies if

this AGREEMENT contains any omissions. In lieu of the invalid or unenforceable provision or in order to complete any omission, a fair provision shall apply which, to the extent legally permissible, comes as close to what the PARTIES would have intended, according to the spirit and purpose of this AGREEMENT, as if they had considered the matter at the time of entering the AGREEMENT.

11.5 No term or provision of this Agreement shall be deemed waived, and no breach excused, unless such waiver or consent shall be in writing and signed by the party claimed to have waived or consented. Any consent by any party to, or waiver of, a breach by the other party, whether express or implied, shall not constitute a consent to, waiver of, or excuse for any different or subsequent breach.

Any waiver by one party of the other's failure to comply with any obligation under this Agreement must be written and signed by such party. Each such waiver must refer to a specific failure to comply and shall not have the effect of waiving any other failure to comply.

11.6 Any notice given in terms of this Agreement shall be in writing and shall –

- a. if delivered by e-mail, be deemed to have been duly received by the addressee on the date of sending of the e-mail; and
- b. if delivered by hand, be deemed to have been duly received by the addressee on the date of delivery of the notice.

Notwithstanding anything to the contrary contained in this agreement, a written notice or written communication actually received by one of the parties from the other, shall be adequate written notice or written communication to such party.

A party may change its address for service provided that the new address is within the same country and that it gives the other party not less than 14 days' prior notice in accordance with this section

Until the end of such notice period, service on either address shall remain effective. All notices delivered personally will be deemed delivered on the date of delivery, if by email on the next Business Day following transmission (save where a message of non-delivery is returned), if by facsimile transmission on the next Business Day following transmission as evidenced by the transmission receipt and by courier on the date of delivery as evidenced by the courier's proof of delivery. This section does not apply to the service of any proceedings or other documents in any legal action or any other method of dispute resolution.

Notices for the Merchant shall be marked for the attention of:

- Name: President
- Email address: president@nexatari.com

Notices for TW shall be marked for the attention of:

- Name and position: ,Marios Athanasiou
- Email address: marios.athanasiou@transactworld.com

11.7 Each party acknowledges this agreement including all schedules and other documents referred to herein:

11.7.1 Represents the entire agreement of the parties in relation to its subject matter. Each party acknowledges that it has entered into this agreement in reliance only on the representations, warranties, promises and terms contained in this agreement and, save as expressly set out in this agreement, neither Party shall have any liability in respect of any other representation, warranty or promise made prior to the date of this agreement unless it was made fraudulently.

11.7.2 Supersedes and extinguishes all previous agreements, promises, assurance, warranties, reparations and understanding between them, whether written or oral relating to the subject matter.

11.7.3 Nothing contained in this Agreement will be deemed or construed by the Parties nor by any third party creating the relationship of partnership or of principal and agent or of joint venture between the parties.

WARRANTIES

12.1 TW represents and warrants that the Services provided to the Merchant will conform substantially with the applicable legislation at all times.

12.2 In the event the Merchant discovers that any Services or products are not in conformance with the representations and warranties made in the above section and report such non-conformity to TW or if the Transaction Services are subject to outages, interruptions, attacks by third parties and delay occurrences, TW shall use its commercially best efforts to remedy material interruptions and will provide adjustments, repairs and replacements, within its capacity, that are necessary to enable the Services to perform their intended functions in a reasonable manner.

12.3 TW Services (including all content, functions, materials and information made available on, provided in connection with or accessible through the Merchant Account) are provided on an "as is" basis. To the fullest extent permitted by applicable Laws and under all circumstances other than those expressly made in the Agreement, we, our Affiliates, and their agents, co-branders or other partners (collectively, "Our Associated Parties") make no conditions, representations or warranties of any kind, express or implied, howsoever regarding the Services including:

12.3.1 any implied conditions, representations and/or warranties of merchantability, satisfactory quality, and/or fitness for a particular purpose; and/or

12.3.2 that TW Services will meet your requirements, be compatible with your Merchant Systems, any Equipment or will contain any particular features or functional

12.4. While TW endeavours to maintain an uninterrupted Service, and except as expressly provided for in the Agreement and as required by applicable Laws, we do not guarantee that the Merchant's access to TW Services will be delivered uninterrupted, securely, timely or error-free, or that the Services will be free from viruses or other harmful properties. It is Merchant's responsibility to implement satisfactory safeguards and procedures to make sure any files he obtains through our Services are free from contaminations or other harmful properties.

12.5. The Merchant warrants not to submit any transaction that the Merchant knows is illegal or fraudulent according to Applicable Law.

12.6 The Merchant warrants it will conduct appropriate due diligence on all Customers (if applicable).

12.7 The Merchant warrants it will use TW Services in good faith, in accordance with the terms of this Agreement and in accordance with all Applicable Law and Payment Scheme Rules. In particular, the Merchant will not use the TW Services in a manner that that could result in a violation of anti-money laundering, counter terrorist financing and similar legal and regulatory obligations.

12.8 The Merchant warrants that it has not been subject to Restraining order, decree, injunction, or judgment in any proceeding or lawsuit, alleging fraud or deceptive practice on the part of the Merchant.

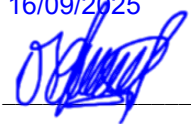
12.9 The Parties warrants that they are duly registered and have the full capacity, regulatory approvals and corporate authorisation to enter into this Agreement and discharge the obligations and responsibilities created herein.

12.10 The Parties further warrant that no element of this agreement constitutes a breach of any existing law, regulation, patent, copyright, or other intellectual property in its country or countries of domicile and operation.

12.11 The Parties warrant that in the case of any third-party software used in respect of this Agreement, that they have the required licence and the right to grant a sub-licence to use such third-party software.

12.12 Each Party warrants to the other that this Agreement constitutes a legal, valid and binding obligation, enforceable against it in accordance with the terms and obligations therein and no provision of this Agreement is in conflict with any of the Party's obligations under its constitutional documents, Applicable Law or any other document, charter or agreement to which the Party is subject.

SIGNATURES

MERCHANT		TransactWorld Limited	
Name:	Mohammad Edriss Amani	Name:	Marios Athanasiou
Title:	Representative	Title:	Director
Location:	Marshall Islands	Location:	Cyprus
Date:	16/09/2025	Date:	16/09/2025
Signature:	<u>MOHAMMAD EDRISS AMANI</u>	Signature:	<u></u>

VISA/MC JPY

<u>Rates</u>	<u>Fees in EUR</u>	<u>Remarks</u>
MDR	6.5%	Visa
	7%	MC
RR	10%	180 Business Days
Refund	5	Per Transaction
Chargeback >1%	45	Excessive chargeback fee might be applied if above card scheme limits
Fraud fee		Per Fraud Transaction
Wire fee		Per Wire
Statement fee		Per Statement
Set up fee	-	
Annual fee	-	Yearly
Settlement expenses		AS per Bank's norms
Crypto settlements	1%	
Transactions fee (approved)	0.30	Per Approved Transaction
Transactions fee (declined)	0.30	Per Declined Transaction

TransactWorld Limited
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